

STATE OF NEW YORK

9214--A

IN SENATE

February 17, 2026

Introduced by Sens. CLEARE, JACKSON, KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the private housing finance law, in relation to establishing an affordable independent senior housing assistance program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The private housing finance law is amended by adding a new article 29-A to read as follows:

ARTICLE XXIX-A

AFFORDABLE INDEPENDENT SENIOR HOUSING ASSISTANCE PROGRAM

Section 1265. Affordable independent senior housing assistance program.

§ 1265. Affordable independent senior housing assistance program. 1. Establishment. The commissioner, in conjunction with the commissioner of health, shall develop an affordable independent senior housing assistance program, which shall provide grants within amounts appropriated or otherwise available therefor to affordable independent senior housing properties to establish and operate resident assistance programs. The affordable independent senior housing assistance program shall be administered by the division.

2. Definitions. For purposes of this article, the following terms shall have the following meanings: (a) "affordable independent senior housing property" shall mean any residential project which contains dwelling units that are affordable to residents at a specific income level pursuant to a statute, regulation, restrictive declaration, or regulatory agreement with a local, state, or federal government entity that is occupied by individuals over sixty years of age, who live independently and at least eighty percent of whom have a total household income that does not exceed sixty percent of the area median income;

(b) "resident assistance" shall mean services or support offered to residents of affordable independent senior housing properties to help

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 promote healthy living by extending independence and improving quality
2 of life; and

3 (c) "division" shall mean the state division of housing and community
4 renewal.

5 3. Assistance. Allowable resident assistance shall be determined by
6 the commissioner in consultation with the commissioner of health;
7 provided however, that the provision of such resident assistance shall
8 not include any services or support that requires the property to be
9 licensed as an adult care facility pursuant to article seven of the
10 social services law or an assisted living residence pursuant to article
11 forty-six-B of the public health law. Prior to issuing any grants pursu-
12 ant to this article, the division and the department of health shall
13 solicit input from various stakeholders to determine what would consti-
14 tute resident assistance to ensure that such resident assistance would
15 not require such licensure. A summary of such input and the determi-
16 nation by the division as to whether the assistance provided by the
17 grant applicant would require licensure as an adult care facility or
18 assisted living residence shall be in writing and shared with the vari-
19 ous stakeholders prior to the approval of any grants pursuant to this
20 section.

21 4. Allocation. Sixty percent of the total funds awarded pursuant to
22 this article in any fiscal year shall be allocated to projects located
23 in urban areas of the state, as such term is defined in subdivision four
24 of section twelve hundred thirty-one of this chapter. Forty percent of
25 the total funds awarded pursuant to this article in any fiscal year
26 shall be allocated to projects located in rural areas of the state, as
27 such term is defined in subdivision three of section twelve hundred
28 thirty-one of this chapter. Up to ten percent of any amounts appropri-
29 ated or otherwise available therefor may be used by the commissioner to
30 administer the program.

31 § 2. This act shall take effect immediately.